

TENTATIVE RULING

John Rodriguez
v.
Blas Operating Company, LLC
24CV004380

Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement

Hearing Date: June 26, 2026

Plaintiff John Rodriguez's ("Plaintiff") Motion for Preliminary Approval of the Class Action and Private Attorneys General Act settlement is **GRANTED**. The court finds the settlement to be fundamentally fair, adequate, and reasonable. [*See Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801-1802.] However, the Court notes the following:

Class Notice. This should be revised to identify Judge Ian Rivamonte, who is currently sitting in Department 14. Judge Carrie Panetta is now assigned to Department 5.

Representative Enhancement Payment. Plaintiff asks the Court to approve a \$7,500 payment to the Class Representative, citing active participation in the case through providing significant documents, information, and aiding counsel. [Plaintiff's Decl. at ¶¶ 1-10.] This request exceeds the typical \$5,000 award in Monterey County and amounts to 15 times the average net recovery of \$490. [*See, e.g., Munoz v. BCI Coca-Cola Bottling Co. of Los Angeles* (2010) 186 Cal.App.4th 399, 412 (stating that awards 30 or 44 times the average recovery are an abuse of discretion).] Plaintiff estimates dedicating 25 to 35 hours to the case [Plaintiff's Decl. at ¶ 11], which would result in an hourly rate of \$214 to \$300 if awarded \$7,500. The Court does not need to finalize its decision on the reasonableness of this enhancement at this stage. A final decision can be made at the final approval hearing to determine if the \$7,500 award is justified and appropriate.

The motion is **GRANTED**, and this case is scheduled for a Motion for Final Approval of the Class Action Settlement on **December 11, 2026**, at 8:30 a.m., unless the parties agree to a different date. The Case Management Conference following the hearing on this motion is **MAINTAINED**. Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED**. You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.